[Attachment 1] NAVER Advertising Partner Agreement

NAVER Advertising Partner Agreement

This NAVER Advertising Partner Agreement (hereinafter referred to as **"Agreement"**) is entered into by and between NAVER Corporation (hereinafter referred to as **"NAVER"**) and the **Partner**, and sets forth the rights, obligations, and other relevant matters between **NAVER** and the **Partner** in connection with the **Partner**'s running of advertisements through the **Platform** upon receiving advertising requests from **Advertisers**.

Article 1 (Definitions)

The terms used in this Agreement shall have the following meanings:

1. **Advertiser**: An entity that applies to run advertisements on the **Advertising Media** through the advertising services provided by **NAVER**.
2. **Partner**: A person who, upon request from an **Advertiser**, acts on behalf of the **Advertiser** in all aspects of running its advertisements, including establishing advertising strategies, applying for advertisements, and operating and managing advertisements.
3. **Advertising Media**: The areas or media on which **NAVER** holds the right to place the **Advertising Materials** of **Advertisers**, either directly or through agreements with third parties.
4. **Ad Types: The various forms of advertising provided by NAVER, including search ads and performance-based display ads.**
5. **Advertising Materials**: The advertising content registered on the **Platform** for the purpose of placement on the **Advertising Media**, including works in the form of text, images, and videos, as well as the addresses of landing pages linked upon clicking.
6. **Platform**: The system through which NAVER provides all services for managing advertising campaigns, including applying for, operating, and canceling NAVER advertisements.
7. **Advertising Service Agreement**: An individual advertising agreement that the **Partner** executes on the **Platform** on behalf of an **Advertiser** to run a specific advertisement.
8. **Advertising Fees**: The service fees paid to **NAVER** by the **Partner** or the **Advertiser** pursuant to the **Advertising Service Agreement**.

Article 2 (Roles and Obligations of the Partner)

1. In the course of performing advertising agency services for its **Advertisers**, the **Partner** shall endeavor to recruit and attract **Advertisers** by introducing NAVER advertising and **Ad Types** to **Advertisers** and encouraging their use, and shall faithfully perform such activities with the duty of care of a good manager and in accordance with the principle of good faith.
2. **In performing the services under Paragraph 1 of this Article, the Partner** shall comply with **[Appendix 2] Advertising Partner SLA** and shall actively cooperate with **NAVER**'s advertising-related terms of use, individual media policies, and policies relating to the **Partner**. **[Appendix 2] Advertising Partner SLA** may be amended during the term of this Agreement due to government regulations, changes in **NAVER**'s management policies, and other changes in the market environment, and **NAVER** shall notify the **Partner** fifteen (15) days in advance of any amendment to **[Appendix 2] Advertising Partner SLA**; provided, however, that if such amendment has a material effect on the rights and obligations of the **Partner**, NAVER shall notify the Partner thirty (30) days in advance.
3. In the course of performing all advertising agency services for **Advertisers**, the **Partner** shall not engage in any act that interferes with the business of **NAVER** or damages its reputation.
4. The **Partner** shall use the information that **NAVER** provides to support the **Partner**'s management of its **Advertisers** (including all advertising-related statistics and other information provided through services or tools of **NAVER**, such as the advertising platform, API services, analytics, and conversion tracking tools) solely for the purpose of managing **Advertisers**, and shall not provide, disclose, sell, or distribute such

information to any third party without the prior written consent of **NAVER**. Upon termination of this Agreement, the **Partner** shall immediately return such information to **NAVER**, and if **NAVER** does not request its return within five (5) days after the services end, the Partner shall immediately destroy it.

5. If the **Partner** acts on behalf of multiple **Advertisers**, **NAVER** shall issue a separate user account to each **Advertiser** rather than a single consolidated account to the **Partner**, and the **Partner** shall not allow any other **Advertiser** to use its own account or the account of any **Advertiser**. If the **Partner** breaches this Paragraph for reasons attributable to it, and as a result **NAVER** or any **Advertiser** suffers damages or an **Advertiser** raises a claim, the **Partner** shall resolve the matter at its own responsibility and cost.
6. **Upon execution of this Agreement, the Partner** shall submit to **NAVER** its financial statements for the fiscal year immediately preceding the date of execution of this Agreement, and shall, during the term of this Agreement, submit each year its financial statements for the fiscal year immediately preceding the relevant year.
7. **The Partner** shall submit, for all IP addresses used at the business premises where it performs its services, a confirmation letter bearing the official seal of the IP provider and containing the Partner's trade name and address, and shall also submit such a confirmation letter for the IP addresses in use in the event of any change in the address of its business premises or in the IP addresses used. The information on the Partner's entire IP address range collected hereunder shall be used for the purpose of verifying compliance with this Agreement.
8. If the **Partner** fails to comply with its obligations under this Agreement, including those under this Article, **NAVER** may reject its applications for advertisements or restrict its use of the **Platform**.

Article 3 (Advertising Service Agreements)

1. The **Partner** shall execute each individual **Advertising Service Agreement** in a manner consistent with the **Ad Types**, **Advertising Materials**, and **Advertising Fees** requested by the **Advertiser**, and shall handle its work in a manner consistent therewith when using the **Platform**.
2. The **Partner** represents and warrants that it has notified, or obtained the prior agreement of, the **Advertiser** regarding the execution and amendment of this Agreement.

Article 4 (Application for Placement and Placement of Advertising Materials)

1. **The Partner shall faithfully register the Advertising Materials on the Platform by the deadline for running the advertisements, and NAVER shall, pursuant to the Advertising Service Agreement, place** the **Advertising Materials** on the **Advertising Media** in accordance with the advertising details submitted by the Partner.
2. If the **Advertising Materials**, or the **Advertiser**'s website accessed through the **Advertising Materials**, contain any content related to the rights of any third party (including intellectual property rights, portrait rights, and personal information), the **Partner** represents and warrants that it has taken all measures necessary to register and use such **Advertising Materials** in accordance with applicable laws and regulations, including obtaining prior consent or permission for use from the relevant right holders.

Article 5 (Support for the Partner)

1. **NAVER** shall provide the **Partner** with partner training and support programs on a regular or ad hoc basis.
2. **NAVER** may, in connection with Ad Types such as Power Contents, conduct promotions for the **Partner** through written notices (including electronic documents such as email) or other means.

Article 6 (Commission)

1. Only if **NAVER** has duly received the **Advertising Fees** related to the **Advertisers** on whose behalf

the **Partner** operates advertisements pursuant to the **Advertising Service Agreements**, **NAVER** shall pay the **Partner** a partner commission as consideration for the performance of its obligations under this Agreement, in accordance with **[Appendix 1] Partner Commission Supplementary Agreement**.

2. If the **Partner** or the **Advertiser** delays payment of, or pays only part of, the **Advertising Fees** under the **Advertising Service Agreement**, **NAVER** may withhold all or part of the commission payable to the **Partner** until the **Advertising Fees** are paid in full.
3. If it is confirmed that, in connection with any **Advertiser** or **Advertising Service Agreement**, the **Partner** has no authority to act on behalf of such **Advertiser** with respect to its advertising, **NAVER** shall not pay any commission to the **Partner** for the relevant matter.
4. **NAVER** may, through consultation with the **Partner**, change the commission rate, commission payment terms, or other related conditions.

Article 7 (Contract Screening)

NAVER shall execute this Agreement only with **Partners** that pass certain screening criteria established by **NAVER**, and may, for the purpose of such screening, send the **Partner** a Request for Proposal (RFP) for the selection of **Partners** between six (6) months and one (1) month prior to the expiration of the term of this Agreement.

Article 8 (Suspension of Placement Due to Reasons Attributable to the Advertising Media)

1. If the placement of the **Advertising Materials** becomes impossible, or a change in the placement position, size, or other attributes of the **Advertising Materials** becomes unavoidable, due to the ad display policies of the **Advertising Media**, **NAVER** may, after giving prior notice to the **Partner**, suspend the placement of the **Advertising Materials** or change the placement position, size, or other attributes of the **Advertising Materials**. If the **Partner** does not wish to change the placement position, size, or other attributes of the **Advertising Materials**, the **Partner** may request **NAVER** to suspend the placement of the relevant **Advertising Materials**.
2. If the placement of the **Advertising Materials** is suspended for the reasons set forth in Paragraph 1 of this Article, **the Partner shall not request NAVER** for compensation arising from such suspension.

Article 9 (Suspension of Placement Due to Defects in Advertising Materials)

1. If any claim is made that the **Advertising Materials** requested by the **Partner** infringe the rights of any third party, including intellectual property rights, or violate any applicable laws, **NAVER** may, after consultation with the **Partner**, request modification of the relevant **Advertising Materials** or suspend the placement of the **Advertising Materials**.
2. Notwithstanding the preceding Paragraph, if any urgent circumstance, such as a security risk to **NAVER** or users of the **Advertising Media** (including persons who move to the **Advertiser**'s website or other destinations through the **Advertising Materials**), arises due to the **Advertising Materials** requested by the **Partner** or the **Advertiser**'s website or other destinations linked to the **Advertising Materials**, **NAVER** may immediately suspend the placement of the relevant **Advertising Materials** and shall notify the **Partner** thereof.
3. If it is confirmed that the **Partner** has violated any applicable laws and regulations, terms of use, operational policies, advertising-related guides, or matters announced through the **Platform**, **NAVER** may, after notifying the **Partner**, immediately suspend the placement of the relevant **Advertising Materials**.
4. When the grounds for suspension of placement under this Article cease to exist, the **Partner** may request **NAVER** to resume the placement of the relevant **Advertising Materials**.
5. In the event of suspension of placement pursuant to this Article, the **Partner** shall not request **NAVER** for compensation arising from such suspension.

Article 10 (Compensation for Service Failures)

If the placement of advertisements is suspended or not duly performed due to reasons attributable to the **Advertiser** or the **Partner**, due to force majeure events beyond the control of **NAVER** such as natural disasters, or due to a violation of the NAVER Advertising Guidelines, the **Partner** shall not claim damages against **NAVER**.

Article 11 (Limitation on Power of Agency)

1. The **Partner** has not been granted by **NAVER** under this Agreement any form of power of agency not expressly set forth in this Agreement, and shall have no authority whatsoever to represent **NAVER** in dealings with any third party. The **Partner** shall not make any representation (whether written or oral) to the contrary.
2. If the **Partner** causes damages to **NAVER** or any third party by breaching Paragraph 1 of this Article, the **Partner** shall compensate **NAVER** for such damages in full and shall hold **NAVER** completely harmless from any claims raised by third parties.

Article 12 (Loss of the Benefit of Time)

In any of the following cases, the **Partner** shall lose the benefit of time for all obligations owed to **NAVER** and shall immediately pay to **NAVER** all amounts that remain unpaid:

1) If the Partner fails to pay the **Advertising Fees** within the period set forth in this Agreement or agreed by the Parties, and does not make such payment within a reasonable period specified by **NAVER** in its demand for performance; or
2) If this Agreement is terminated due to reasons attributable to the **Partner**.

Article 13 (Duty of Notification)

1. **NAVER** and the **Partner** shall notify the other Party without delay if any of the following circumstances occurs or is likely to occur, and a Party that fails to give such notice shall be subject to penalties under **[Appendix 2] Advertising Partner SLA** :
   가. Change of trade name, representative, location, or type of business;
   나. Any change in material matters related to the business of either Party that may affect the performance of this Agreement (including significant changes in key personnel responsible for Advertiser management mutually recognized at the time of execution of this Agreement, and changes in material business matters such as the establishment of an affiliated corporation or the launch of a new business); or
   다. Any change in material management matters or the credit standing of either Party, such as a merger or acquisition, business transfer, change of the controlling shareholder exercising management control, dishonor, bankruptcy, or filing for rehabilitation.
2. The other Party that has received notice under subparagraph (b) or (c) of the preceding Paragraph shall have the right to review whether to maintain this Agreement, and if it conducts such review, it shall notify the other Party of the result of the review in writing or by electronic means such as email within thirty (30) days from the date of receipt of such notice. The result of the review may include the immediate termination or the maintenance of this Agreement.
3. If either Party immediately terminates this Agreement as a result of the review under the preceding Paragraph, the other Party shall not demand from such Party any monetary or non-monetary compensation, including damages, on the grounds of such termination.

Article 14 (Prohibition of Assignment)

Neither NAVER nor the **Partner** shall assign, transfer, pledge, or otherwise dispose of its rights or obligations under this Agreement to any third party without the prior written consent of the other Party.

Article 15 (Termination)

1. If the other Party breaches any of its obligations under this Agreement, fails to perform this Agreement, or is found to be incapable of performing this Agreement, either Party may notify the other Party in writing (including by email; the same shall apply hereinafter) to cure such breach within a period of not less than fourteen (14) days, and if no appropriate response or corrective action is taken within such period, may immediately terminate this Agreement by a unilateral written notice to the other Party.
2. Either **NAVER** or the **Partner** may immediately terminate this Agreement by unilateral notice without any separate demand upon the occurrence of any of the following events:
   가. If **NAVER** or the **Partner** is subject to revocation of its business license, (provisional) attachment, (provisional) disposition, or other compulsory execution by a third party, or if bankruptcy or rehabilitation proceedings are commenced against it or filed by it, or if any material event affecting its business occurs, such as the adoption of a resolution for dissolution, such that the smooth performance of this Agreement is deemed impossible;
   나. If there is a risk to the credit of **NAVER** or the **Partner**, such as the dishonor of securities issued, endorsed, or guaranteed by it;
   다. If there is any bribery, or any illegal or fraudulent act that interferes with the normal performance of contractual duties, during the performance of this Agreement;
   라. If either Party breaches any material obligation under this Agreement or violates any applicable laws and regulations, making it difficult to achieve the purpose of this Agreement; or
   마. If any other event occurs that is specified as a ground for termination in any individual provision of this Agreement.
3. If the **Partner** violates any of the following subparagraphs, NAVER may terminate this Agreement by written notice without any separate demand:
   (a) If the **Partner** engages in any act that impairs the service stability or quality of the **Platform** (including causing failures of NAVER's systems through attacks on advertising relevance indices, manipulation of ad rankings, manipulation of related search terms, manipulation of autocomplete terms, invalid clicks on Advertisers, or the use of other unauthorized systems such as macros);
   (b) If the **Partner**'s violation of **[Appendix 2] Advertising Partner SLA** causes material losses to **NAVER** or any **Advertiser**; or
   (c) If the **Partner** receives penalty points of six (6) or more within twelve (12) months **under [Appendix 2] Advertising Partner SLA**.
4. If either Party to this Agreement engages in any act that damages the business reputation and credibility of the other Party by spreading false information, the other Party may demand that the Party that spread such false information correct it, and the Party receiving such demand shall immediately correct the false information so spread. Regardless of whether such false information has been corrected, the other Party whose business reputation and credibility have been damaged by the spreading of such false information may immediately terminate this Agreement by written notice.
5. The termination of this Agreement shall not affect the exercise of any right to claim damages.

Article 16 (Damages)

If either Party fails to perform the **Advertising Service Agreement** or this Agreement due to reasons attributable to it and thereby causes damages to the other Party, the Party to which such reasons are attributable shall compensate the other Party for such damages.

Article 17 (Confidentiality)

1. **NAVER** and the **Partner** shall keep confidential any business information, know-how, trade secrets, or other information of the other Party that has been or will be obtained in connection with the performance of this Agreement (hereinafter referred to as the **"Confidential Information**"), shall not divulge **the Confidential Information** to any third party, and shall take all necessary measures to prevent their

employees, agents, advisors, and others from divulging it; provided, however, that the foregoing shall not apply if the **Confidential Information** is already publicly known, has been lawfully obtained from a third party having legitimate authority without breach of any obligation of confidentiality with respect to the **Confidential Information**, or has been independently developed irrespective of this Agreement, or if the **Confidential Information** is lawfully required to be disclosed by applicable laws and regulations or by an order of a court or governmental authority.

2. All materials containing the **Confidential Information** shall be immediately returned or destroyed at the request of the disclosing Party if this Agreement terminates upon expiration of its term, termination, or for any other reason, or if the receiving Party determines that it no longer needs the **Confidential Information**.
3. The Parties acknowledge that all **Confidential Information** shall remain the exclusive property of the disclosing Party, and that the provision of the **Confidential Information** shall not grant the receiving Party any license or right to use any intellectual property rights therein.
4. If any matter relating to this Agreement is required to be disclosed to the press or other media, the specific timing, method, and other details of such disclosure shall be determined in advance through mutual consultation between the Parties.
5. The obligations under this Article shall remain in effect for a period of two (2) years following the expiration of the term of this Agreement, and if either Party causes damages to the other Party by breaching this Article, the Party to which such breach is attributable shall compensate the other Party for all such damages.

Article 18 (Indemnification)

1. If the **Advertising Materials** requested by the **Partner** infringe the rights of any third party, including intellectual property rights, or contain false or misleading information, and thereby violate the law or cause damages to users of the **Advertising Media**, **NAVER** shall not be liable therefor, and the **Partner** shall bear all liability therefor.
2. If, due to reasons attributable to the **Partner**, any damages, such as the non-placement of advertisements, are incurred by the **Advertiser** in the course of running advertisements, or the rights of the **Advertiser** are infringed, the **Partner** shall bear all liability therefor; provided, however, that upon the request of the **Advertiser**, **NAVER** may resolve such matter at its own cost in accordance with its compensation standards and claim such costs from the **Partner**.
3. If **NAVER** becomes subject to any lawsuit, claim, objection, criminal prosecution, or other proceedings brought by any domestic or foreign third party or governmental authority in connection with the **Advertising Materials** requested by the **Partner**, the **Partner** shall defend **NAVER** therefrom and shall bear all costs arising therefrom (including attorneys' fees and damages).
4. If **NAVER** is unable to place the **Advertising Materials** due to natural disasters or force majeure events equivalent thereto, such as distributed denial-of-service (DDoS) attacks, network failures of internet service providers (ISPs), or failures of the **Advertising Media** itself, **NAVER** shall be released from any liability for damages incurred by the **Partner** as a result thereof.
5. **NAVER** shall not be liable for any errors or failures occurring only in limited environments, such as specific browsers or apps, on the **Advertising Materials** provided by the **Partner** or the **Advertiser**'s website linked to the **Advertising Materials**, and the **Partner** shall be responsible for checking such matters in advance.

Article 19 (Dispute Resolution)

This Agreement shall be governed by and construed in accordance with the laws of the Republic of Korea. Any dispute arising in connection with this Agreement shall be resolved by mutual agreement, and if no agreement is reached, such dispute shall be subject to the exclusive jurisdiction of the Seoul Central District Court by agreement of the Parties.

<List of Appendices>

[Attachment 1] NAVER Advertising Partner Agreement

1. [Appendix 1] Partner Commission Supplementary Agreement
2. [Appendix 2] Advertising Partner SLA
3. [Appendix 3] Fair Competition Agreement
4. [Appendix 4] Agreement on the Processing and Protection of Personal Information (Provision to Third Parties)